Stop Gambling on the 18% H-1B Lottery

The 365-Day Cap-Exempt Framework Decoded Under INA § 214(g)(5)

- Over 400,000 applicants compete every April for only 85,000 slots.
- The annual lottery win rate has plummeted to approximately 18-24%.
- A federal exemption exists for educational & non-profit research institutions.
- Cap-Exempt petitions can be filed 365 days a year with ZERO lottery.

KEY TAKEAWAY / ACTION:

Petitions are filed immediately upon job offer acceptance.

Lottery H-1B vs. Cap-Exempt H-1B

Legal Comparison under U.S. Federal Immigration Regulations

- **Filing Window:**
  For-profit lottery is April only. Cap-Exempt is year-round anytime.
- **Lottery Selection:**
  Cap-Subject is random drawing. Cap-Exempt has NO lottery pool.
- **Adjudication Speed:**
  Both eligible for 15-day Premium Processing (Form I-907).
- **Statutory Protections:**
  Both mandate official Prevailing Wages under DOL rules.

KEY TAKEAWAY / ACTION:

Cap-Exempt workers receive the exact same lawful H-1B status.

Who Legally Qualifies as Cap-Exempt?

The 3 Statutory Employer Groups Defined by Congress

- **1. Higher Education:**
  All accredited U.S. colleges and public/private universities.
- **2. Affiliated Non-Profits:**
  Teaching hospitals, medical systems, and clinical networks.
- **3. Research Organizations:**
  Non-profit research foundations & federal labs.

KEY TAKEAWAY / ACTION:

Tech, data science, finance, and HR roles inside universities qualify!

Active Cap-Exempt Employers in the U.S.

Enterprise Healthcare, University Networks & Research Centers

- **Healthcare:**
  Stanford Medicine, Mayo Clinic, Johns Hopkins, Cleveland Clinic.
- **Genomics & Tech:**
  Broad Institute of MIT & Harvard, Allen Institute for AI.
- **Universities:**
  UC System, NYU, Harvard, Columbia, University of Michigan.
- **Compensation:**
  Full standard DOL prevailing wages from $68,000 to $220,000+ USD.

KEY TAKEAWAY / ACTION:

Search 46+ verified institutional sponsors on uscareersolutions.online

Can You Move to a For-Profit Tech Firm Later?

Understanding Concurrent H-1B & Cap Portability Rules

- **Concurrent Employment:**
  You can legally work for a commercial firm part-time.
- **Cap Exemption Retention:**
  You keep Cap-Exempt status while at the non-profit.
- **Moving to Commercial:**
  Transitioning full-time to a commercial tech firm requires entering the lottery once, or self-petitioning via EB-2 NIW.

KEY TAKEAWAY / ACTION:

Many candidates use Cap-Exempt as the launching pad to self-petition.

Your 4-Step Cap-Exempt Action Checklist

How to Land a Non-Lottery U.S. Role This Quarter

- **Step 1:**
  Filter job search for .edu, teaching hospitals, and research institutes.
- **Step 2:**
  Confirm non-profit 501(c)(3) tax status on the organization's charter.
- **Step 3:**
  Tailor resume to single-column ATS Harvard standards.
- **Step 4:**
  Request immediate Form I-129 petition with 15-day Premium Processing.

KEY TAKEAWAY / ACTION:

Explore our live Cap-Exempt Directory: uscareersolutions.online/jobs